BRENDAN NGEHSI NEWANFORBI
Petitioner, In Pro Per
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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; and DOES 1 through 10, inclusive, Respondents.	Case No. 26CV191136 **[PROPOSED] ORDER AND JUDGMENT ON MOTION FOR PEREMPTORY WRIT OF MANDATE** Date: January 8, 2027 Dept.: 25 Judge: Hon. Jenna M. Whitman

Petitioner's motion for issuance of a peremptory writ of mandate on the First Cause of Action came on for hearing on January 8, 2027. Having considered the papers, the evidence received, including the recording lodged on September 8, 2026, and the arguments presented, the Court finds and orders as follows:

Findings common to any relief.

1. On April 9, 2026, Petitioner requested Form I-918, Supplement B certification from Respondent California Highway Patrol ("CHP"), a certifying entity. On April 20, 2026, Captain G. Serrato, a certifying official, denied the request solely on the ground that the November 1, 2024 incident involved no qualifying or substantially similar criminal activity under Penal Code section 679.10.

2. Petitioner has no plain, speedy and adequate remedy in the ordinary course of law.

(Code Civ. Proc., § 1086.)

ALTERNATIVE A - Certification.

A3. At the time of Petitioner's arrest at approximately 1:12 a.m. on November 1, 2024, the facts known to the arresting officers would not have persuaded a person of reasonable caution that Petitioner had driven under the influence. In particular, the Court finds: [SPECIFIC FINDINGS ON THE EVIDENCE].

A4. Petitioner's arrest and the custody that followed lacked lawful authority and constituted false imprisonment within Penal Code section 679.10, subdivision (c), or an offense substantially similar to it under subdivision (d).

A5. Petitioner has been helpful, is being helpful, or is likely to be helpful in the detection or investigation of that conduct; no request for his assistance was made or refused. (Pen. Code, § 679.10, subds. (g)(1), (h).)

A6. On these findings, section 679.10, subdivision (g)(1) leaves CHP no discretion to deny certification. A peremptory writ shall issue directing CHP to set aside its April 20, 2026 denial and, within 30 days after service of the writ, through an authorized certifying official, to complete, sign and deliver to Petitioner the Form I-918, Supplement B requested on April 9, 2026.

ALTERNATIVE B - Reconsideration.

B3. CHP's April 20, 2026 decision [was made without considering the recording identified in Petitioner's request / applied an incorrect legal standard, namely: _____].

B4. A peremptory writ shall issue directing CHP to set aside its April 20, 2026 denial and, within 30 days after service of the writ, through an authorized certifying official, to decide Petitioner's April 9, 2026 request anew. CHP shall consider the lodged recording and the record before this Court, shall apply this order's findings and Penal Code section 679.10, subdivisions (c), (d), (g), (h) and (k), and shall not rest its decision on the absence of any investigation, charge, prosecution or conviction, or on any ground excluded by subdivision (k).

ALTERNATIVE C - Focused hearing.

C3. The Court sets a nonjury evidentiary hearing under Code of Civil Procedure section

1090 on _____, limited to: (a) whether the arrest report's entries concerning odor, speech, orientation and the walk-and-turn test are accurate when compared with the recording; and (b) what CHP reviewed before April 20, 2026. Within 14 days, CHP shall produce to Petitioner, or lodge for in camera review, every document responsive to Request for Production No. 8 dated on or before April 20, 2026.

Return and jurisdiction.

If a writ issues, CHP shall file a return within 45 days after service stating what it has done to comply. The Court retains jurisdiction until the return is filed and approved. No relief is awarded on any dismissed cause of action.

IT IS SO ORDERED.

Dated: _____

_____

HON. JENNA M. WHITMAN

Judge of the Superior Court